

Opinion of the Court

Louisiana espouses, began by describing the “‘essential’” benefit of a jury trial as “‘the interposition . . . of the commonsense judgment of a group of laymen’” between the defendant and the possibility of an “‘overzealous prosecutor.’”⁴¹ And measured against that muddy yardstick, they quickly concluded that requiring 12 rather than 10 votes to convict offers no meaningful improvement.⁴² Meanwhile, these Justices argued, States have good and important reasons for dispensing with unanimity, such as seeking to reduce the rate of hung juries.⁴³

Who can profess confidence in a breezy cost-benefit analysis like that? Lost in the accounting are the racially discriminatory *reasons* that Louisiana and Oregon adopted their peculiar rules in the first place.⁴⁴ What’s more, the plurality never explained why the promised benefit of abandoning unanimity—reducing the rate of hung juries—always scores as a credit, not a cost. But who can say whether any particular hung jury is a waste, rather than an example of a jury doing exactly what the plurality said it should—deliberating carefully and safeguarding against overzealous

⁴¹ 406 U.S., at 410 (plurality opinion) (quoting *Williams v. Florida*, 399 U.S. 78, 100 (1970), and *Duncan*, 391 U.S., at 156).

⁴² 406 U.S., at 410–411.

⁴³ *Id.*, at 411.

⁴⁴ The dissent chides us for acknowledging the racist history of Louisiana’s and Oregon’s laws, and commends the *Apodaca* plurality’s decision to disregard these facts. *Post*, at 141–144, 153. But if the Sixth Amendment calls on judges to assess the functional benefits of jury rules, as the *Apodaca* plurality suggested, how can that analysis proceed to ignore the very functions those rules were adopted to serve? The dissent answers that Louisiana and Oregon eventually recodified their nonunanimous jury laws in new proceedings untainted by racism. See *post*, at 142–143, n. 3. But that cannot explain *Apodaca*’s omission: The States’ proceedings took place only *after* the Court’s decision. Nor can our shared respect for “rational and civil discourse,” *post*, at 144, supply an excuse for leaving an uncomfortable past unexamined. Still, the dissent is right about one thing—a jurisdiction adopting a nonunanimous jury rule even for benign reasons would still violate the Sixth Amendment.